

***Discussing the minimum
required regulation of
sex industries***

Commision on the Status of Women

I. Intro

"The only way to get rid of a temptation is to yield to it."

— Oscar Wilde

Whether in contemporary art, music, or general entertainment, sex has been omnipresent in human culture since the dawn of civilization. It is therefore no surprise that sexual services are and have oftentimes been used for barter, just as any other service or coin. These practices, however, may pose questions of ethics, morality and religion not only on individuals, but on states as a whole. Legalised or not, *sex work*, under many other more derogatory names, is present in every nation, with differing frameworks of operation. However, due to the popular belief of many countries that such an occupation is inherently immoral or against established religious norms, sex workers of any gender worldwide suffer widespread discrimination and violations of their human rights, including lack of access to health-care and social services, impeded access to justice, interference with private and family life and exclusion from civil, political and cultural life.

Another aspect worth mentioning is that the illicit market for commercial sexual exploitation remains a persistent and escalating global challenge. Even in ancient times, orphaned children and captured slaves were used in sexual acts without consent, defying their basic human rights. Now, women and children of all ages are forced into similar conjunctures as sexual exploitation is by far the most commonly identified form of human trafficking (79%)¹. Whilst trafficking is often done internationally, 1 out of 4 of registered victims is a citizen of the reporting country², with many specific countries having a higher ratio.

¹ https://www.unodc.org/documents/human-trafficking/Executive_summary_english.pdf

² On average, in Europe:
https://ec.europa.eu/eurostat/statistics-explained/index.php?title=Trafficking_in_human_beings_statistics#1_out_of_4_of_registered_victims_is_a_citizen_of_the_reporting_country

II. Key Terms

Sexual Worker

Sex workers are any and all adults who sell or exchange sex for money, goods or services (e.g., transport), regularly or occasionally. It is a fairly new term, to be used instead of the more derogatory “prostitute” which still appears in many official documents or sources.

Human Trafficking

Human Trafficking is the recruitment, transportation, transfer, harbouring or receipt of people through force, fraud or deception, with the aim of exploiting them for profit.³ In our context, it might also be used as **Sex Trafficking**, referring to the cases in which the exploitation for profit includes non-consensual sexual acts.

Decriminalization

Decriminalization is the process through which the legislature removes criminal sanctions against an act, omission, article, or behavior which is considered a crime. Decriminalization means **the act would remain illegal**, but the legal system would not prosecute a person for the act. The penalties would range from no penalties at all to a civil fine.⁴

Legalization

Legalization, as defined in the dictionary, is the act of allowing something by law. In contrast to decriminalization, which keeps the underlying act illegal, legalization aims to bring the act under the regulations of the law, mitigating harm through legal frameworks. It is the opposite of **Prohibition**, in which all aspects of the trade are considered illegal.

Abolitionism

Abolitionism, although originally used to refer to the political movement to end slavery, in our context refers to a system where sex work itself is legal, but third-party involvement and solicitation is generally prohibited. This model recognises that a prostitute may choose to work in the trade, however, the law is designed to stop prostitution impacting on the public.⁵

Neo-Abolitionism

Neo-abolitionists call for the decriminalization of prostitutes themselves, so they consider sex workers to commit no crime, but they encourage governments to criminalize the activities of procurers and customers, meaning it is illegal to buy sexual services⁶.

STI/STD - Sexually Transmitted Infection/Disease

³ <https://www.unodc.org/unodc/en/human-trafficking/human-trafficking.html>

⁴ <https://www.law.cornell.edu/wex/decriminalization>

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<https://web.archive.org/web/20180309133125/https://lop.parl.ca/content/lop/ResearchPublications/prb0329-e.htm>

⁶ Idem 4

Red Light District - special urban area designated for sex-related businesses. In some countries, almost all prostitution can be limited and linked to the specific district.

Sex Tourism - the practice of travelling to a foreign country with the intention of having paid intercourse, often when it is not allowed in your own country.

III. Background Info

The notion of exchanging sexual acts for goods has been called on multiple occasions “the world’s oldest profession”. Although not entirely true, the first record of a sex worker is of Shamhat, a character from The Epic of Gilgamesh, poem which is believed to be nearly 4,000 years old⁷. Now, the sacred prostitute/priestess Shamhat would be criminally convicted in Iraq (where the Epic takes place), as sex work is prohibited in the country. This, of course, is not the only case, as the acts appear in many works from many countries and regions, during many different time periods.

Most recorded data can be found starting with the medieval times, where although the influence of the church was an important factor in many regions, prostitution was tolerated because it was believed it helped prevent other greater sins, namely rape, sodomy and masturbation. Even then, multiple regions in Europe considered that sex work should be limited to special brothels, streets or, in some cases, in the exterior of the city walls. This lenient view would not last long, however, because of the first major outbreak of syphilis that occurred in Naples in the mid-1490s. This, along with rising concern over other STIs, led to a more rigorous approach regarding sex workers, ending with the Contagious Diseases Act in the United Kingdom. This legislation essentially allowed for police officers to arrest women suspected of being prostitutes and force them to endure medical checks for sexually transmitted infections.⁸ In the rest of Europe, solutions like the Regulatory System were used to register sex workers and check them for infections or diseases. Due to pressures from women activism, these systems were later abolished.

At the levels of the United Nations and The European Union, the problem of the required regulation for sex work is a newly tackled one, with talks and resolutions adopted only during the last couple of years. While the topics usually addressed are broader, such as trafficking in young women and children or the rights of LGBTQ+ individuals, there are a lot of official resources that touch upon the subject of sex workers. Currently, the most important aspects related to this topic that are discussed in the United Nations is the access of all individuals,

⁷ <https://yalebooks.yale.edu/2020/04/30/the-epic-of-gilgamesh/>

⁸ <https://hist259.web.unc.edu/contagious-diseases-acts-1864-1866-and-1869/>

more specifically in our case, sex workers, to their human rights and diminishing, as much as possible, the discrimination against workers of any kind. The resolutions passed in the European Union highlight similar problems, while acknowledging the different legal frameworks of member countries already established in their own nations and their apparent effectiveness, whilst advocating for the Nordic Model.

IV. Major Countries and Organizations Involved

Sweden

Sweden was the first to develop and adopt in 1998 what was later called the Nordic Model, a framework that is currently used by 8 other countries and the state of Maine, USA. It is a **neo-abolitionist** model that is based on: decriminalising sex workers, criminalizing buyers, providing sex workers with help to get out of the industry, and creating informational campaigns for the public, with its main purpose being to end demand. Although developed by scholars and feminists, it is subject to a lot of criticism, many political parties and sex rights activists being split on supporting or opposing the model.

France

France adopted the Nordic Model in 2016. In 2019, a Research Report from Médecins du Monde was published, with the question of “What do sex workers think about the French Prostitution Act?”. The results of the document opposes the implementation of the neo-abolitionist model, stating that “The law has had a detrimental effect on sex workers’ safety, health and overall living conditions.”⁹. It composes opinions of multiple anonymous sex workers and real collected data to portray the changes the industry suffered since the framework was adopted.

United Kingdom

In the United Kingdom, a standard abolitionist method is used, where sex work is legal, but soliciting in public spaces, brothels and pimping are punishable by law. However, laws have not been thoroughly enforced during the years, which leads to a lot of workarounds in the existing frameworks, namely brothels disguising as massage parlors. In more recent times, there have been raids at brothels which led to dozens of arrests in the UK as part of Europe-wide anti-slavery operation¹⁰

⁹ <https://sciencespo.hal.science/hal-02115877/document>

¹⁰

<https://www.nationalcrimeagency.gov.uk/news/dozens-of-arrests-in-the-uk-as-part-of-europe-wide-anti-slavery-operation>

Germany

Germany has legalized sex work since 2002, as well as other related aspects of the domain such as the fact that it is legal to own brothels. It is a regulated and taxable work, the German Government adopting the Prostitutes Protection Act, in 2016, however, the social stigmatization related to the work is still present in the country. There are multiple reports which state that the legalization of sex work has brought in more trafficking to the country, with an increased statistical significance based on data¹¹, so in recent years officials consider adoption of the Nordic models¹².

Thailand

Thailand is one of the most popular destinations for Sex Tourism, with an estimated 150 thousand sex workers. As sex tourism is a transnational problem, there have been multiple talks and resolutions requesting both the sending and the receiving countries implement adequate frameworks to tackle this industry.¹³

Netherlands

The Netherlands is among the most known countries for legalization of prostitution as well as its famous Red Light District, a part of the urban area known for the abundance of brothels, sex shops and other sex oriented businesses. The nation legalised owning and operating brothels since 2000, being among the first nations to bring the domain into the public legal framework.

The Democratic Republic of Congo

According to UNAIDS, The Democratic Republic of Congo houses the highest number of sex workers at an estimated 2.9 million¹⁴, almost 6 times more than any other nation. Although prostitution is legalized, related activities are not, and sex workers suffer from violence and extortion from the police, as public order laws are sometimes used against them.

¹¹ <https://www.sciencedirect.com/science/article/pii/S0305750X12001453?via%3Dihub#t0025>

¹² <https://www.dw.com/en/germany-mulls-ban-on-buying-sex-to-fight-exploitation/a-74673114>

¹³

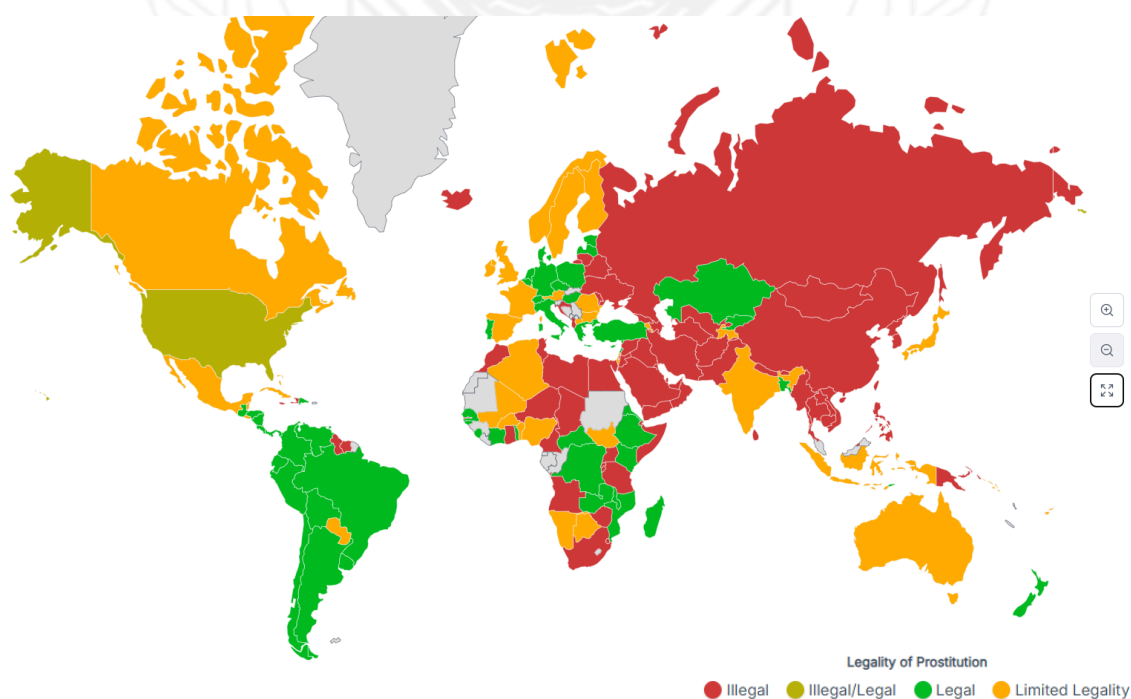
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¹⁴

https://web.archive.org/web/20190604174922/http://www.aidsinfoonline.org/gam/stock/shared/dv/PivotData_2018_7_22_636678151733621264.htm

V. Type of regulation by country

Type of regulation	Countries
Prohibitionism	Afghanistan, China, Democratic's People Republic of Korea, Iran, Iraq, Japan (strictly intercourse is illegal), Nigeria (Only northern Nigeria, South has different regulations), Thailand, Pakistan, Russia, Saudi Arabia, South Africa, South Korea, Ukraine, United States (except Nevada and Maine)
Neo-Abolitionism	Sweden, Norway, Iceland, Canada, Northern Ireland, France, Ireland, Israel, Maine
Abolitionism	Brazil, Democratic Republic of Congo, India, Italy, Romania, Spain, United Kingdom,
Decriminalization	New Zealand, Belgium, Australia (some states)
Legalization	Hungary, Germany, Greece, Mexico (depending on states), Netherlands, Switzerland, Turkey



Map provided by worldpopulationreview.com

VI. Relevant UN Treaties

- **General Assembly Resolution - A/RES/79/154**
- **Human Rights Council Resolution - A/HRC/WG.11/39/1**
- **Human Rights Council Resolution - A/HRC/59/L.18/Rev.1**

VII. Previous Attempts to Solve the Issue

● Full Legalization

Various countries adopted the stance that full legalization will benefit both the industry and the government, as legalizing sex work brings it into the public domain as a taxable work, driving underground markets into a legal framework that helps the workers.

● Criminalisation of the buyer

In an idea to stop demand, multiple countries consider that rather than criminalising the sex worker, the buyer should be punished. In this way, soliciting becomes illegal, with the purpose of stopping the demand in the domain. This is the main solution offered through the Nordic model.

● Community Engagement through Public Awareness Programmes

Regardless of the implemented method of handling sex work, there is a multitude of countries that have public awareness programmes and active community engagement, with the hopes of stopping the population of entering the domain.

● Safe Exit options

There is a clear emphasis on a safe exit option, regardless of the adopted framework of the country. As a lot of workers start due to sex trafficking or are otherwise forced into the domain, this is very important to implement.

VIII. Possible Solutions

● Global Standardised Regulations

One of the biggest problems that needs addressing is the lack of consensus of countries on a clear and strict definition and separation of sex work from sex trafficking, with an insistent focus on consent, the purpose being to establish the rights of the former while helping the victims of the latter.

● Public Health Interventions

As seen throughout the history, although public healthcare is now the strongest it has ever been, the sex industry is a permanent healthcare risk. Therefore, clean and thorough

frameworks for Public Health Interventions would improve the lives of both sex workers and their clients.

- **Clear Exit Programmes**

Regardless of the way that a person entered the sex industry, they should be allowed to leave conveniently, on their own terms, without facing backlash or discrimination. Furthermore, countries could consider supporting people exiting the industry with psychological help or housing, especially if the country is opposed to the domain.

- **Protection from Violence and Discrimination**

Violence and discrimination is a serious problem sex workers face on a regular basis. In countries where the occupation is illegal, it is almost impossible to report assault or rape without facing charges, so adequate regulation systems could be implemented.

Questions delegates should consider

- What type of policy does the delegate's country follow in regards to sex work?
- How effective is said policy in combating the problem?
- Would the delegate's country suggest their policy as a standard for other nations? Why or why not?
- Has the delegation's country taken any active measures that have proved statistically beneficial? If so, what were the respective measures and their effects?
- How does the delegation's country tackle problems related to sex work, such as sex trafficking? What about sex tourism?

IX. Sources

Background information

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- <https://www.sexualrightsinitiative.org/news/2025-jul/did-you-miss-it-heres-what-happened-hrc-59>

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